Metro Nashville Public Schools Educator Use of AI Procedure 4.124.1p: Data and Student Privacy Passages

Excerpted verbatim from *Educator Use of Artificial Intelligence (AI) & Generative Artificial Intelligence (GAI), Procedure 4.124.1p (Metro Nashville Public Schools, Tennessee, last reviewed July 16, 2024)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text. The Data privacy passage continues across a page break and is quoted in two parts.

Guiding Principles: Privacy, Data Protection, and Security

Source: PDF page 2

3. Privacy, Data Protection, and Security: Protecting personal and sensitive information is crucial, complying with laws such as COPPA and FERPA to ensure student and staff data privacy and security. Staff should be aware of the use of or sharing personally identifiable information of students and other employees when utilizing AI tools, which may violate FERPA.

Considerations: Data privacy

Source: PDF pages 2–3

Data privacy: The use of data in AI can raise issues of bias and privacy concerns. Schools should be clear

about their data practices, seek informed consent, and enforce strong data security measures. Compliance with COPPA, CIPA, and FERPA is essential:

- FERPA: The Family Educational Rights and Privacy Act (FERPA) is a federal law that protects the privacy of student education records. AI systems must safeguard the privacy of student educational records and adhere to consent requirements set by parents.
- COPPA: The Children's Online Privacy Protection Act (COPPA) is a federal law that regulates how websites, apps, and other online services collect data and personal information from children under 13 years old. AI technologies that collect data on children under 13 must comply with COPPA standards.
- CIPA: The Children's Internet Protection Act (CIPA) requires K-12 schools and libraries that receive E-rate discounts to have internet safety policies that protect minors from harmful or obscene content online. AI content filters should align with CIPA guidelines to block harmful content.

Considerations: Acceptable Use & Technology (excerpt)

Source: PDF page 3

Monitoring by teachers is necessary to ensure students use AI tools appropriately and don't over-rely on them, bypassing critical thinking and personal learning.

AI Applications within MNPS (excerpt)

Approved applications/software can be found on the MNPS SharePoint.

However, the use of AI tools also presents challenges, particularly in ensuring student safety and data privacy. Any AI tool, even those that are free, must undergo MNPS's software approval process to ensure they provide a secure environment for district and school data.